

Deposition of Omar Ibarra — appearance and position

Q. State your name, position, and the date of this deposition.

A. My name is Omar Ibarra. I am an audit manager for Blue Cedar Compliance, Inc., and I am testifying on October 3, 2025. During the relevant period, Naomi Voss supervised Leora Benton, Tessa Wynn, Calvin Keene, and me in the operations group.

Q. What kind of work did you perform?

A. I managed regulated-client audits, assigned field teams, reviewed control exceptions, and coordinated remediation. I handled a larger share of western-region travel than some managers, but I used the same scheduling system, audit tracker, and reviewer pool as the other managers.

Q. Did you participate in deciding who would be terminated?

A. No. I was evaluated in the same manager group and was retained. I did not attend the calibration meetings, edit anyone's score, or choose among the savings scenarios. I can testify about my work, my travel offer, my scorecard, and the assignments I received, but not about every reason Pike used to select the final combination.

Work shared with Benton

Q. What responsibilities overlapped with Benton's responsibilities?

A. We both planned audits, selected field personnel, reviewed findings, handled remediation follow-up, and communicated with clients. We sometimes covered work outside our usual geographic assignments. Benton had Northline and Oriole and chaired remediation quality. I coordinated more western-region field work, but that difference did not prevent me from taking a matter from her portfolio.

Q. Did you use a separate job description?

A. No. The four managers worked under the common audit-manager framework, although Benton held a senior title and each of us had specialized assignments. My work was not confined to a separate office or product line scheduled to close.

Q. Could Benton's functions be redistributed?

A. They could be divided, and that is what occurred, but transfer required actual labor. After her termination I received Oriole, including planned travel, while Wynn received Northline and Keene received the remediation-review queue. Saying the work could be transferred does not mean the underlying functions ended or that no transition cost existed.

Hearth engagement and recorded lead credit

Q. What do you remember about Project Hearth?

A. I was the manager recorded as the engagement lead. During the field phase I became unavailable for part of the scheduled work, and Benton stepped in. She coordinated field activity and kept the engagement moving while I remained the person shown in the system's lead field.

Q. Did the lead entry fully describe who performed the work?

A. No. It identified formal ownership, but it did not show every planning substitution or period of field leadership. Benton did meaningful work on Hearth even though the recorded designation stayed with me. I did not object when she later asked the company to review whether lead credit matched actual work.

Q. Did Benton accuse you of intentionally taking credit?

A. Not in any communication I saw. I understood her concern to be about the assignment and recording process. Managers sometimes relied on the database designation for reviews even when another person had covered substantial work. I can confirm the Hearth division of labor, but I did not decide whether the overall assignment pattern was discriminatory.

Completion and travel history

Q. What did your 2024 audit metrics show?

A. The tracker listed forty-two matters for me, with thirty-five closed on time. My imported completion score was 22 of 30. None of my matters was recorded as a failed regulatory deliverable. The workbook used the same general completion category for all four managers.

Q. How much did you travel?

A. I completed sixteen approved travel days in 2024. My imported availability score was 9 of 15. The records show Benton completed twenty-eight days, Wynn nineteen, and Keene fourteen. I did not have the highest completed-travel total.

Q. Were you aware Benton declined one assignment?

A. I learned from the records that she declined a next-day trip on December 19 because she was already leading a scheduled client closeout. Another manager covered the trip without delay. I did not report that event as evidence Benton was generally unwilling to travel, and I was not asked to compare it with my own history before my score changed.

February 27 offer for future travel

Q. Did you send a message about second-quarter travel?

A. Yes. On February 27 I told Voss that I was willing to take additional travel during the coming quarter. I expected more western-region field work and wanted scheduling to know I was available. The message was an offer about future assignments, not a correction to the sixteen travel days I had completed in 2024.

Q. Did you guarantee that you would accept every short-notice trip?

A. No. I said I was willing to take more travel, subject to client schedules and ordinary conflicts. I did not promise unlimited availability or compare myself with Benton in the message.

Q. Did you ask for five additional points?

A. No. I did not propose a numerical adjustment. I later learned that the calibration group used the message to increase my availability score from 9 to 14. I was not present when they decided that future willingness should receive that amount of credit or when Benton's completed history and one scheduling conflict were evaluated differently.

Availability exception and final score

Q. What were your imported and final scores?

A. My imported values were 22 for completion, 18 for continuity, 13 for credentials, 9 for availability, and 11 for role uniqueness. They totaled 73. The availability increase to 14 raised my final total to 78; the other four values stayed the same.

Q. What evidence supported the increase?

A. The exception cited my February 27 message. It did not cite additional completed travel or a newly accepted trip. The workbook therefore compared an expression of future willingness with Benton's historical record and her single declined short-notice assignment.

Q. Did you decide that was a consistent comparison?

A. No. I supplied the message, but management decided how to score it. I can understand why expected summer coverage mattered, and I also understand why completed travel is different from an offer. Solis's variance audit noted that difference. I did not respond to that audit, and Pike approved the exception under the broader description "business continuity."

Oriole transfer after the termination

Q. When did you receive Oriole?

A. Voss assigned it to me in the March 25 redistribution message, the day after Benton's termination. The transition was scheduled through June 27 and included six planned travel days. I reviewed Benton's files, met the working team, and continued the scheduled validation work.

Q. Was Benton's work product usable?

A. Yes. The documentation gave me the open issues, responsible contacts, and remaining dates. I did not discover a performance failure that required the transfer. The change took time because I had to learn the client history while keeping my existing assignments.

Q. Did the Oriole function disappear?

A. No. It remained active. By May 31 the post-RIF ledger still showed the transferred matters operating and no replacement manager position. I absorbed Oriole and planned travel, Wynn absorbed Northline, and other duties went to Keene and Voss. That record supports that Benton's position was eliminated while her work was distributed, rather than every function being discontinued.

Credentials and role differences

Q. How did your credentials compare with Benton's?

A. I held one credential Benton did not hold, and she held one I did not. My imported credential score was 13, while hers was 14. We each had qualifications used in audit work. I do not contend that my credential record was uniformly stronger than hers.

Q. Were your roles identical?

A. No. I coordinated western travel, and Benton chaired remediation quality and managed different clients. But we both performed the common manager functions and could receive transferred work. The company itself placed us in the same four-person calibration group because of that overlap.

Q. Did the workbook treat your travel responsibility as a separate position?

A. No. It treated travel under the availability criterion and gave me an exception. My role uniqueness remained 11. The post-RIF transfer of Oriole added work to my existing manager role; it did not create a new western-region title. Those distinctions are important because specialization can affect a criterion without making employees incomparable for every purpose.

Knowledge of calibration and protected activity

Q. When did you first see the detailed calibration record?

A. During discovery in this case. In March I knew Blue Cedar was considering cost reductions, but I did not see Benton's imported score, the sequence of downward adjustments, or the alternative savings combinations. I did not attend the March meetings.

Q. Before Benton's termination, did you know she had filed an agency charge?

A. No. I knew she had raised concerns about lead assignments because the subject was discussed among managers, but I did not know the agency-notice history before March 24. No one asked me to use her complaint as a factor in an assignment or score.

Q. Can you testify about Pike's motive?

A. Not from personal knowledge. Pike did not tell me why he selected Benton, and finance did not tell me a particular manager was mathematically required. I can testify that my own exception was based on future travel, that I had fewer completed travel days than Benton, and that I later received one of her continuing client matters.

Authentication, scope, and corrections

Q. What materials did you review for this deposition?

A. My scorecard, the common role matrix, the February 27 travel message, the travel-history comparison, the March 25 redistribution message, and the Oriole schedule. Those records correspond to my duties, source metrics, calibration score, availability exception, and retained assignments, which were the subjects identified in the initial disclosures.

Q. Are your answers based on personal knowledge where you said they were?

A. Yes. I personally sent the travel message, performed the Hearth and Oriole work, and completed the travel described. I relied on produced records for exact score values and meeting decisions I did not attend. I have tried not to turn a document I later read into an event I personally observed.

Q. Do you have corrections?

A. I first recalled the Oriole transfer as March 24, but the written assignment message is dated March 25, and March 25 is correct. I also confirm that my completed-travel total was sixteen, not nineteen. Nineteen was Wynn's total. I have no other substantive correction.